

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SENEGAL

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Senegal, grounded in the national land domain and the powers of the municipal council, the 2023 Environment Code, the public hearing, and the action for annulment before the Supreme Court

*This guide uses the Senegalese legal terms you will actually encounter (the **domaine national**, **affectation** and **désaffectation**, the **délibération** of the **conseil municipal**, the **étude d'impact** and the **analyse environnementale initiale**, the **audience publique**, the **comité technique**, the **certificat de conformité environnementale**, the **recours pour excès de pouvoir**, and so on), each explained in plain language where it first comes up. Senegal adopted a new Environment Code in 2023; the core mechanics below apply, but check which implementing decrees are in force.*

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. French legal terms are given with a short English gloss, since the law and the administration work in French.

A note on money. Budgets in this guide are in CFA francs (FCFA). Every figure is indicative — Senegalese community campaigns are frequently run at very low cost, and the decisive documents are administrative acts you are entitled to see.

A note on what makes this system unusual. In Senegal, most land is not owned by anyone in the ordinary sense. It belongs to the **domaine national**, held by the State on behalf of the nation — and in rural areas it is **your own elected municipal council** that allocates it, withdraws it, and deliberates on customary use rights. That makes the council both the body most likely to sign your land away and the body you can most directly reach — and its decision is a document a court can annul.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Senegal, and the country's land system puts the decisive act unusually close to home. Under the **Loi sur le Domaine national of 1964**, all land that was not registered or classified in the public domain — at the time, **more than ninety per cent of the territory** — became the **domaine national**, held by the **State on behalf of the nation** to ensure its rational use and development. Such land can generally only be

registered in the name of the State, though occupants who have made **permanent improvements** may seek registration. But in the **zones de terroirs**, which make up the great majority of the domaine national, the power to **allocate land (affectation)** and to **withdraw it (désaffectation)** belongs to the **elected local council** — today the **conseil municipal** — which also deliberates on **the exercise of customary use rights** within its territory, on land occupation plans, and on subdivisions.

That matters enormously. It means the document that hands your fields to an investor is usually a **délibération of your own municipal council** — a public administrative act, taken by councillors you can name, and challengeable in court. Senegal's **Cour suprême** hears exactly such cases: it has entertained a challenge to a municipal council's allocation of domaine national land to a company, and has held that **subdivisions on domaine national land fall within the powers of the municipal council** and not of a minister. The route is the **recours pour excès de pouvoir**, the action to annul an administrative act for illegality — and the Court has confirmed that the time limit runs from **notification or from knowledge acquired** of the act.

The environmental system was rebuilt recently. The **Environment Code adopted in 2023** replaced the 2001 Code and made public information a priority: it guarantees that **any person who requests it may obtain environmental information when it is available**, obliges the authorities to **disseminate any serious and imminent threat** to health and the environment, and places on the State a **duty to facilitate public participation in decision-making**. Environmental evaluation is **mandatory for projects presenting risks** — through **impact studies, initial environmental analyses** and **audits**. Where a project is **rejected following the audience publique**, the **Comité technique de Validation et de Suivi des Évaluations environnementales** rules on the merits of that decision; where the Comité validates an evaluation, the Minister issues by decree a **certificat de conformité environnementale valid for five years and renewable**. The Ministry must ensure the **publication of environmental evaluation reports** and the monitoring of the **environmental and social management plan**.

The honest counterweight is documented, and it comes from Senegalese campaigners themselves. Impact studies run to **between five hundred and eight thousand pages**, which citizens have neither the means to obtain nor the time to read. Consultations have been criticised as no longer being genuine public hearings but **closed technical committees in which the public can no longer ask questions**. Several environmental statutes remain unapplied for want of implementing decrees. And environmental law struggles to bite in the industrial belt around Dakar — Bargny, Rufisque and neighbouring communes — where communities have contested heavy industry for years.

What "winning" realistically means. Rarely a national project cancelled. More often: a **délibération annulled** by the Supreme Court, undoing the allocation; a **désaffectation reversed** or compensation secured; an **audience publique** that actually takes place and records opposition; a **certificat refused or conditioned**, or not renewed at the five-year point; **evaluation reports published** when they were being withheld; or a project relocated or reduced. The realistic goal is to attack the **council's act** and to make the **hearing and the information rights real**.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — find the council's **délibération**, the assessment type, and the deadlines.
2. **Documentation** — prove occupation and use, and build the record of harm.
3. **Local opposition** — organise where the decision is taken: the commune.
4. **Legal challenges** — the hearing, the certificate, and the **recours pour excès de pouvoir**.
5. **Media strategy** — coverage that reaches national organisations and raises the political cost.

No single step wins alone. In Senegal the combination that works is **pressure on the municipal council plus a well-founded action to annul its decision**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Senegal's tilt is practical rather than doctrinal: strong information rights on paper, unreadable studies in practice; a public hearing that can become a closed committee; and communes under heavy pressure to attract investment. Assessing that honestly helps you choose the right tools: the strongest routes are **obtaining and challenging the délibération**, **demanding a genuine audience publique**, **exercising the Code's information rights in writing**, and filing a **recours pour excès de pouvoir** in time. Section 13 deals honestly with tilted situations.

How to use this guide

Read Sections 1–3 once, and Section 4 immediately if a project has been announced — the annulment clock can start from the moment you learn of the act. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you judge how far to take it.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Senegal is a unitary republic with **régions, départements**, and **communes** as the elected local authorities, alongside the **préfet** and **sous-préfet** representing the State. Two bodies of law govern most development conflicts: the **Loi sur le Domaine national** with its implementing decrees, and the **Code de l'Environnement** adopted in 2023.

The bodies that decide — and what each one controls

The conseil municipal (municipal council). The single most important body for rural land. In the **zones de terroirs**, the council **allocates (affectation)** and **withdraws (désaffectation)** domaine national land, deliberates on **the exercise of customary use rights** within its territory, adopts the **land occupation plan** and subdivision and development schemes, and authorises the installation of dwellings. Its decisions take the form of a **délibération** — a written, dated, public act. When land is handed to an investor, this is usually the document that does it.

The préfet and sous-préfet. Represent the State locally and exercise **supervisory control (tutelle)** over certain municipal acts, so a **délibération** may pass through their hands and generate further documents.

The Ministry in charge of the Environment and its services. Administers environmental evaluation, ensures the **publication of evaluation reports**, and — through the Minister — issues the **certificat** or **attestation de conformité environnementale**.

The Comité technique de Validation et de Suivi des Évaluations environnementales. A standing technical committee that **validates** environmental evaluations, **rules on the merits** where a project is rejected following the audience publique, and **monitors implementation of the environmental and social management plan**. It is a named, addressable body.

Collectivités territoriales. The Code recognises local authorities among the actors in environmental management, so the commune is engaged on both tracks.

The Cour suprême. Hears the **recours pour excès de pouvoir** — the action to annul an administrative act for illegality — including against **délibérations** on domaine national land and against ministerial acts. It has confirmed that subdivisions on domaine national land are for the **municipal council**, and that the appeal period runs from **notification or from knowledge acquired**.

Which one is "yours"? Ask: has the **conseil municipal** taken a **délibération** affecting your land, and when? Which **type of evaluation** applies — impact study, initial environmental analysis, or audit? Has an **audience publique** been held? Has a **certificat de conformité environnementale** been issued, and when does its five years expire? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Two processes run in parallel: land and environment.

The land track, under the Loi sur le Domaine national:

1. **What the land is.** All land not classified in the public domain, **not registered**, and whose ownership had not been transcribed when the law took effect forms the **domaine national** — historically more than ninety per cent of the country. The **State holds it on behalf of the nation** to ensure rational use and development.
2. **Who can register it.** Domaine national land may in principle be **registered only in the name of the State**; the right to seek registration is however recognised for **occupants who have made constructions, installations or improvements amounting to permanent development**.
3. **Zones.** The domaine national is divided into **zones de terroirs** (the great majority, administered through the local council), **zones pionnières** (State-controlled for development schemes), and **urban zones**.
4. **Allocation.** In the zones de terroirs the council **allocates land free of charge, on request**, to members of the community and their associations. This **affectation** confers a right of use — not ownership.
5. **Withdrawal.** The council may also **withdraw** land — **désaffectation** — under the conditions set by decree. This is

the mechanism by which people who have farmed for generations can lose access, and it is an act that can be challenged.

6. **Public utility.** The State may only seek registration of terroir lands **for operations declared to be of public utility**, which brings its own procedure and compensation questions.

The environmental track, under the 2023 Code:

1. **Information rights first.** The Code guarantees that **any person who requests it may obtain environmental information when available**, requires authorities to **publicise serious and imminent threats**, and places on the State a **duty to facilitate public participation** in decision-making.
2. **Mandatory evaluation.** Projects presenting environmental risks must undergo evaluation — an **étude d'impact environnemental**, an **analyse environnementale initiale** for lesser projects, or an **audit** for existing operations.
3. **The audience publique.** A public hearing forms part of the process. Where a project is **rejected following the hearing**, the **Comité technique** then rules on the merits of that rejection — so the hearing is not decorative, and what is recorded there matters.
4. **Validation and the certificate.** Where the Comité technique validates the evaluation, the **Minister issues by arrêté a certificat de conformité environnementale**, valid for **five years and renewable**; audits and classified installations attract an **attestation**. **The five-year expiry is a recurring, predictable opening.**
5. **Publication and follow-up.** The Ministry must ensure the **publication of environmental evaluation reports**, and the **Comité technique monitors implementation of the environmental and social management plan** — so both the report and the plan are things you can demand and check.
6. **Sanctions.** The Code provides administrative sanctions, alongside special funds for environmental protection.

The rulebook — the policies that decide the outcome

- **The Loi sur le Domaine national and its decrees.** Was the land **affected** or **désaffectée** lawfully, by the competent body, on a proper deliberation? Were existing users' rights considered? Was a purported public-utility justification real?
- **The Code de l'Environnement 2023.** Was evaluation required and carried out? Was the **audience publique** genuinely held? Were the **information rights** honoured? Was a **certificat** issued, and is it still valid? Is the **management plan** being implemented and monitored?
- **The Code général des Collectivités territoriales.** Defines the council's competences — the basis on which the Supreme Court has held that certain land decisions belong to the council and not to a minister.
- **Rules on the applicability of administrative acts**, which govern when an act takes effect and from when it can be challenged.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Senegal has pursued mining, phosphates and zircon, cement and heavy industry, hydrocarbons, agro-industrial schemes and large urban and coastal developments; communes are under pressure to attract investment and have limited own revenue; environmental studies are produced for promoters and run to hundreds or thousands of pages; and administrative capacity is thin relative to the volume of files. None of this is unlawful, but it explains the lean — and why the council's own act, and the hearing, are where communities find leverage.

The overseers — who watches the decision-makers

- **The Cour suprême** — annulment of unlawful administrative acts, including délibérations and ministerial arrêtés.
- **The Comité technique** — validation, review after a rejection at the hearing, and monitoring of the management plan.
- **The préfet** — supervisory control over municipal acts.
- **The Cour des comptes and inspection bodies** — public funds and administrative conduct.
- **The Médiateur de la République** — complaints about administration.
- **National environmental and land-rights organisations** — Senegal has active organisations, including youth environmental movements and environmental-justice groups, which have publicly challenged both the readability of impact studies and the closure of public hearings.

Naming and using the right body matters: here the most consequential early judgment is usually **whether a délibération exists, what it says, and when you learned of it** — because that determines both your argument and your deadline.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Senegalese and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Senegal: the act that dispossesses you is usually a **written decision of your own municipal council**, and written decisions can be **annulled**.

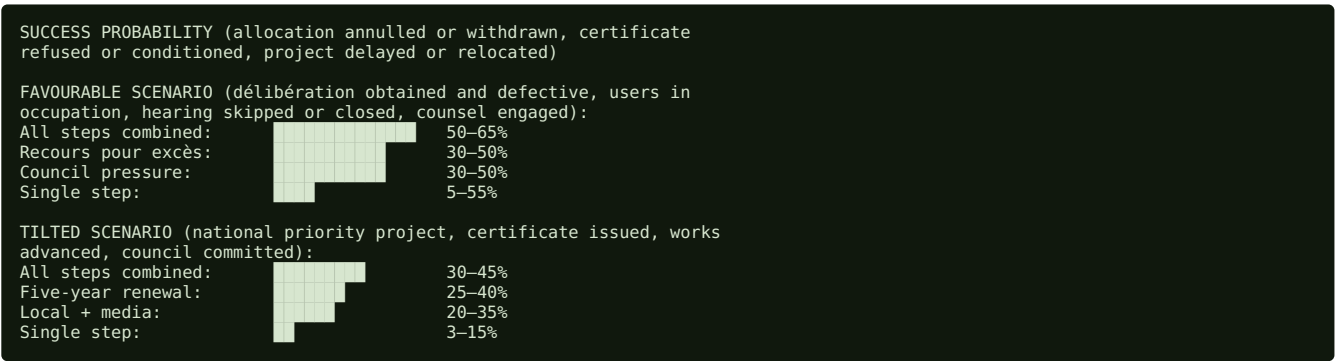
Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (FCFA)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Local opposition only	25-40%	3-18 months	low	Council reconsiders; political cost
Obtaining the délibération	35-55%	weeks	minimal	The act in hand; the case becomes possible
Pressure on the conseil municipal	30-50%	3-12 months	low	Délibération withdrawn or amended
Information request under the Code	30-50%	1-3 months	minimal	Study and reports obtained
Participation in the audience publique	25-40%	1-3 months	low	Opposition recorded; rejection possible
Submission to the Comité technique	20-35%	1-6 months	low	Conditions; validation refused
Recours pour excès de pouvoir	30-50%	12-36 months	moderate	Délibération or arrêté annulled
Objection at the five-year renewal	25-40%	at renewal	low	Certificate not renewed, or conditioned
Media and national organisations	20-35%	1-12 months	low	Political cost; technical support
All steps combined	50-65%	9-36 months	low-moderate	Allocation annulled or withdrawn, certificate refused or conditioned, project delayed or relocated

Key insight: all steps together are far more effective than any single one — and Senegal's multiplier is the **délibération**. Unlike systems where land moves through private contracts you never see, here the transfer of use rights over the domaine national is a **public act of an elected council**, which means it can be obtained, read, criticised in the council chamber, and — if unlawful — **annulled by the Supreme Court**. The second multiplier is the **five-year certificate**, which creates a predictable moment of renewal rather than a permanent approval. The distinctive disadvantages are impact studies of **five hundred to eight thousand pages** that communities cannot realistically obtain or read, and public hearings criticised as having become **closed technical committees where the public can no longer ask questions**.

A note on cost: obtaining the délibération, writing to the council, exercising the Code's information rights, and attending the hearing cost almost nothing. A recours pour excès de pouvoir requires counsel and is the main expense, though national organisations and lawyers do support such cases. The other worthwhile expenditure is a short independent technical note, because an eight-thousand-page study is answered not by another long document but by three precise points.

Effectiveness Visualization



How to read this honestly. In Senegal the strongest facts are **administrative**: a **délibération taken by a body without competence**, or without the required deliberation, or in disregard of existing users; a **désaffectation** carried out without proper basis; a project proceeding **without the required evaluation or certificate**; an **audience publique never held**, or conducted so that the public could not participate; and **information refused** despite the Code's guarantee that it be provided on request when available. These are questions of legality, which is exactly what the **recours pour excès de pouvoir** decides. What is harder is defeating a project of national priority that has followed the process — there the realistic gains are conditions, relocation, compensation, and the **five-year renewal** as a second bite. Judge success accordingly, and note the deadline point: the Supreme Court treats **knowledge acquired** of an act as starting the clock, so do not assume time runs only from formal notification.

Step Importance Ranking (When All Combined)

1. **Local opposition at the commune** — because the decisive act is taken there, by people you can name and reach.
2. **Legal challenges** — the recours pour excès de pouvoir against the délibération or the arrêté.
3. **Documentation** — occupation, use, and the record of harm.
4. **The hearing and the Comité technique** — where rejection is possible and opposition is recorded.
5. **Media and national organisations** — which supply technical capacity and political cost.

Winning Senegalese campaigns combined an early copy of the délibération, sustained pressure in the commune, a documented record of occupation and use, participation in the hearing, and counsel instructed before the deadline passed.

What Senegalese Campaigns Actually Show

A few patterns recur. **Land moves by public decision, not private sale** — the **domaine national** comprises all unregistered land, historically **over ninety per cent of the territory**, held by the **State on behalf of the nation**, and in the **zones de terroirs** it is the **elected council** that **allocates and withdraws** land and deliberates on **customary use rights**. **Those decisions are challengeable** — the **Cour suprême** has entertained a challenge to a municipal council's allocation of domaine national land to a company, and has held that **subdivisions on domaine national land fall within the council's powers**, annulling action by a minister who lacked competence; it has also confirmed that the annulment period runs from **notification or knowledge acquired**. **Occupation can matter for registration** — those who have made **permanent improvements** may seek registration, an exception worth knowing. **The 2023 Code strengthened information and participation on paper** — information on request when available, publication of evaluation reports, a duty to facilitate participation, an **audience publique** whose rejection the **Comité technique** must then assess, and a **five-year renewable certificate**. **But practice is contested** — Senegalese campaigners have publicly criticised impact studies of **five hundred to eight thousand pages** that citizens cannot obtain or read, and consultations that have become **closed technical committees where the public can no longer ask questions**, while several environmental laws remain unapplied for want of decrees. The through-line: **get the council's decision, use the information rights in writing, and be ready to ask a court to annul**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact area and boundaries, project type and stage, and what is there now — **champs and market gardens, fallows, fruit trees, grazing and transhumance routes, wells and boreholes, mangrove and coastline, forest, fishing grounds, cemeteries, and homes**. Obtain the **evaluation report** and list every admitted impact with its page reference — and, given the length of these documents, extract **three decisive points** rather than attempting a full rebuttal. Pay particular attention to **water, coastline and mangrove**, and **dust and emissions**, which have driven Senegal's most sustained community campaigns.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) whether a **délibération** of the **conseil municipal** has allocated or withdrawn land, its number and date; (b) whether any **désaffectation** affects existing users; (c) which **type of evaluation** applies and whether an

audience publique has been held; (d) whether a **certificat de conformité environnementale** has been issued and when its **five years** expire; and (e) whether the **préfet** has approved or supervised any municipal act.

Question 3: What Specific Action Stops It?

Realistic outcomes include: the **délibération withdrawn or amended** by the council itself; the **délibération or a ministerial act annulled** by the Supreme Court; **evaluation reports published** and information released; a **project rejected at the audience publique**, with the Comité technique then ruling on that rejection; a **certificate refused, conditioned, or not renewed** at five years; or the project relocated or reduced. Map them and pursue at least two.

Question 4: When Is the Decision Final?

This question decides cases in Senegal, so treat it first. A **recours pour excès de pouvoir** must be brought within the applicable period, and the Supreme Court has held that the period runs from **notification** of an individual act **or from knowledge acquired** of it. In practice that means the clock may already be running from the day the community learned of the délibération — so **consult a lawyer immediately** rather than waiting for a formal document to arrive. Diarise also the **audience publique** and the **five-year expiry** of any certificate.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the promoter and any foreign parent or financier; whether the project is presented as being of **public utility**, which changes the land procedure; what the commune expects to receive; and which councillors voted for the délibération. Use public sources — the council's minutes, the préfecture, the Ministry's published evaluation reports, and the commercial registry. Build a dated, sourced timeline.

Output of Step 1: a one-page fact sheet with the affected area, the délibération's number and date and how you learned of it, the evaluation type and hearing status, the certificate and its expiry, the préfet's role, every deadline, and the money map.

Worked example: which lever is actually open

Suppose villagers learn that land they have farmed for generations has been allocated to a company, and clearing is expected. Working the questions: **Q1** — you record the fields, the trees, the wells and the grazing, family by family. **Q2** — you go to the **mairie** and ask for the **délibération**: its number, date and text, and whether any **désaffectation** was decided. This is the single most important document in the case, because the land is **domaine national** and the council's decision is what moved it. **Q3** — the live levers are: pressing the **council** to withdraw or amend its own act; demanding the **evaluation report** under the Code's information rights; participating in the **audience publique**; and, if the délibération is unlawful — taken without competence, without proper deliberation, or in disregard of existing users — a **recours pour excès de pouvoir** to annul it. **Q4** — you act at once, because the period may run from the day you learned of the act. **Q5** — the minutes show who voted and on what basis. In an afternoon you know that **the délibération is the campaign, and the clock has probably already started**.

STEP 2: DOCUMENTATION

Documentation in Senegal has two distinct jobs. The first is to prove **who has been using the land and for how long**, because rights over the domaine national rest on use and allocation rather than on purchase, and because occupants who have made **permanent improvements** may even seek registration. The second is to build a **short, precise** critique of a very long study — the recurring complaint of Senegalese campaigners is that impact reports run to hundreds or thousands of pages, so the winning approach is not to answer everything but to identify **three decisive failures** and evidence them well.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the works, and prove **use**.

Use and occupation, household by household. For each family: the **champs** cultivated and where, how long, and from whom the land came; **fruit trees planted**; market gardens; grazing and transhumance routes used; and any

permanent improvements — wells, fencing, buildings, orchards — because these matter both as evidence and, potentially, for registration.

Water. Document wells, boreholes, ponds and watercourses, who draws from them and for what, and the water table where the community knows it. In much of Senegal water is the decisive resource question.

Coast, mangrove and fishing. Where the project is coastal, document the shoreline, mangrove, landing sites and dependent households, with dated photographs.

Health and dust. Where an industrial installation is at issue, record dust, emissions, noise and respiratory complaints as the community experiences them, dated and located.

How to hold it. Keep everything dated and located, held collectively, with copies outside the village.

LAYER 2: THE ADMINISTRATIVE ACTS AND THE STUDY

This is the decisive layer in Senegal. Catalogue four things:

1. **The délibération.** Obtain the council's decision: its **number, date, text, and the minutes of the session**. Who proposed it, who voted, what was said, and whether existing users were mentioned at all. Establish also **when and how the community learned of it**, because that fixes your deadline.
2. **Any désaffectation.** Whether existing allocations were withdrawn, on what basis, and whether those affected were heard.
3. **The evaluation and the hearing.** What type of evaluation applies, whether the **report has been published** as the Code requires, whether an **audience publique** was held, where, and whether the public could actually put questions — and whether a **certificat de conformité environnementale** was issued and when its five years run out.
4. **The three decisive points.** From the study itself, extract a small number of specific, page-referenced failures — typically **water balance and downstream users, the number of affected households, and cumulative effects with other installations**. A short note that a councillor or a judge can read beats a long one nobody will.

Get expert eyes on it. A brief signed technical note from a university department, professional association or national environmental organisation carries far more weight than volume. Senegal has active environmental-justice organisations and youth environmental movements that have themselves campaigned on the unreadability of impact studies, and they are realistic allies.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human terms:

- **Livelihoods** — what each household produces and stands to lose: crops, market garden income, livestock, fishing, fruit trees. Quantify **per household**, because compensation is assessed that way.
- **Water and health** — sources affected, distances to alternatives, dust and emissions exposure, and who is most affected.
- **Community and continuity** — cemeteries, common areas, transhumance routes, and what displacement would cost beyond assets.

Package this layer twice: a rigorous version in **French** for the council, the Ministry and any court, and a plain version in **Wolof or the local language** for community meetings, so people can follow what is being claimed in their name.

How to Structure Your Documentation

- **Phase 1: Use and occupation (Weeks 1-4)** — the household record and dated photographs.
- **Phase 2: The acts (Weeks 1-4, urgently)** — the délibération, the minutes, and the date of knowledge; the evaluation and certificate position.
- **Phase 3: The three points (Months 1-2)** — the short technical critique, signed.
- **Phase 4: Ongoing** — the management plan's implementation, and the approach of the five-year renewal.

Common Documentation Pitfalls (What Fails)

- **Not obtaining the délibération** — it is the act that moved the land, and everything follows from it.
- **Not fixing the date of knowledge** — the annulment clock may run from when you learned of the act.
- **Trying to answer an eight-thousand-page study** — choose three points and evidence them.
- **Recording losses in aggregate** — compensation is per household.

- **Ignoring the certificate's expiry** — five years is a scheduled second chance.
- **Keeping everything with one person** — hold the archive collectively.

Documentation Budget Breakdown (FCFA)

Item	Low (volunteer/NGO)	Higher (commissioned)
Household use record	minimal	modest
Copies of délibération and minutes	modest	modest
Photography and GPS	minimal	modest
Short signed technical note	often free	moderate
Counsel for annulment	—	moderate
Travel, printing, translation	modest	modest

Most is inexpensive. The one substantial cost is **counsel**, and it is worth it: the recours pour excès de pouvoir is the remedy that actually undoes a land allocation.

WHAT TO GATHER, AND WHERE TO FIND IT

Much of what decides a Senegalese case is administrative, and the most important document sits in your own commune.

The mairie (commune). The **délibération** allocating or withdrawing land, its number and date, and the **minutes of the session**; the **plan d'occupation des sols**; and any subdivision or development scheme. Ask in writing and keep proof.

The préfecture / sous-préfecture. Records of **approval or supervision** of municipal acts, and any correspondence about the project.

The Ministry in charge of the Environment. The **evaluation report**, which the Code requires to be **published**; the record of the **audience publique**; the **certificat or attestation de conformité environnementale** and its date; and the **environmental and social management plan** with its monitoring records.

The Comité technique. Its role in validating the evaluation and, where a project was rejected at the hearing, its assessment of that rejection.

Land services. Whether any **registration** has been sought or made, and the status of any claim based on **permanent improvements**.

Company and financing records. The promoter, its parent and financiers, and published disclosure where an international lender is involved.

How to force a document open. The **2023 Environment Code** guarantees that **any person who requests it may obtain environmental information when it is available**, requires the **publication of evaluation reports**, and places on the State a **duty to facilitate public participation**. Cite these obligations expressly in a written request to the Ministry and the commune, keep proof of filing, and record any refusal or silence — a refusal is itself material, both politically and in any later action.

Free and low-cost help. Senegal has active environmental-justice and youth environmental organisations, university researchers, and lawyers who take administrative cases. Because these organisations have themselves campaigned on access to impact studies and the conduct of public hearings, they are natural allies on exactly the points most communities need help with.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the commune and the Ministry, and the local-ally entries point you to the organisations and lawyers already working nearby.

Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a

developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; most countries have their own equivalents.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Senegal, organising has an unusually precise target: **the conseil municipal**. The act that allocates or withdraws land in the zones de terroirs is a **délibération of elected councillors** who live in the area, hold public sessions, and face elections. That is a very different proposition from lobbying a distant ministry. It also means the campaign's first political question is not "how do we reach the government" but "how do we reach the twenty or thirty people who took, or will take, this decision".

Three principles carry special weight here: **organise at the commune** (the decisive act is local, public and reversible by the same body that took it); **fix the date of knowledge** (because the annulment clock may run from when the community learned of the act, the campaign's timeline is set on day one); and **be short and specific** (against a study of thousands of pages, three well-evidenced points delivered to a councillor, a journalist or a judge will travel further than a comprehensive rebuttal).

PHASE 1: FOUNDATION (Weeks 1-4)

Step 1a: Start with those in occupation — and go to the mairie. Reach the households farming, grazing or fishing in the area, and in the same week request the **délibération** and the **minutes** of the session at which it was taken. Record the date on which the community learned of it.

Step 1b: Affinity groups by concern. Let people join through fields and trees, water, grazing routes, fishing, dust and health, or the cemetery. Women's groups and market gardeners often hold the most detailed knowledge of plots and water use.

Step 1c: Begin the household use record, and contact an organisation. Record who farms what and since when, with any **permanent improvements** noted. Contact a national environmental-justice or land organisation and, given the deadline, **a lawyer** — this cannot wait.

PHASE 2: PUBLIC LAUNCH (Weeks 3-10)

Step 2a: Community assembly. Inform, decide collectively, and mandate representatives. Explain plainly what the **domaine national** means: nobody bought this land, the council allocated it, and a council can be persuaded — or a court can annul.

Step 2b: Go to the council chamber. Request to address the **conseil municipal**, ask for the item to be reconsidered, and put the household use record before it in writing (Section 8B). Ask each councillor, publicly and politely, whether they were told that families were farming there.

Step 2c: Exercise the information rights, in writing. Request the **evaluation report** — which the Code requires to be published — the record of the **audience publique**, and the **certificat** with its date (Section 8C). Keep proof of every request.

Step 2d: Prepare for the audience publique. Insist it be held where affected people can attend, in a language they understand, with time to put questions — and record how it is actually run. Where a project is **rejected at the hearing**, the Comité technique must then rule on that rejection, so what the hearing records genuinely matters.

Step 2e: Media at launch. Time coverage to the council session or the hearing.

PHASE 3: COALITION EXPANSION (Months 2-6)

Step 3a: Broaden the alliance. Bring in neighbouring villages and communes affected by the same project, herders using the same routes, fishers, market gardeners' and producers' associations, religious and community leaders, university contacts, and national **environmental-justice and youth environmental organisations** — the latter having campaigned publicly on precisely the access and hearing failures you are likely to encounter.

Step 3b: Coalition agreements. Agree who addresses the council, who instructs counsel, who holds the documents, and who speaks publicly. Agree also, in advance, how any compensation would be handled — offers to individuals are the usual way a community is divided.

Step 3c: Produce the three-point note. Commission or draft a **short signed technical note** on the three decisive failures. This is the document you hand to councillors, journalists and, later, the court.

PHASE 4: SUSTAINED PRESSURE (Months 3-12)

Step 4a: Press the council to act on its own decision. A council can withdraw or amend its *délibération*. This is the fastest possible outcome and the one most often overlooked.

Step 4b: Submit to the Comité technique. Where the evaluation is before the committee, submit the three-point note and the record of the hearing.

Step 4c: File the recours pour excès de pouvoir. Where the *délibération* or a ministerial act is unlawful, instruct counsel to seek **annulment** before the **Cour suprême** — and do so within the period, remembering that **knowledge acquired** may start it running.

Step 4d: Public actions. Meetings, memoranda to the mairie and préfecture, and peaceful demonstrations are used and effective. Take advice on notification requirements, keep everything peaceful and orderly, avoid confrontation at works sites, and remember that the sharpest instruments here are the council chamber and the court.

Worked example: a community that unlocks the strong levers

A village learns that land it has farmed for generations has been allocated to a company and that clearing will begin. Anger rises and a blockade is proposed. What converts the anger into force happens differently. First, two residents go to the **mairie** and obtain the **délibération** and the **minutes**, and the community formally records **the date it learned of the act** — because that may start the annulment clock. Second, they begin the **household use record**: who farms which plot, since when, and what **permanent improvements** exist. Third, they request to address the **conseil municipal**, put the record before it in writing, and ask each councillor whether the session was told that families were cultivating there; the minutes show it was not. Fourth, they write to the Ministry exercising the Code's information rights for the **evaluation report** — which the Code requires to be **published** — and for the record of the **audience publique**, keeping proof of the request and of the silence that follows. Fifth, they commission a **short signed note** making three points: the water balance, the number of households understated, and the cumulative effect of the other installations nearby. With that in hand, counsel files a **recours pour excès de pouvoir** to annul the *délibération*, on the ground that it was taken without regard to existing users and, in part, by a body acting outside its competence. The lesson generalises: **in Senegal the délibération you obtain in week one is both the target and the timetable.**

Opposition Building Budget: Year-Long Campaign (FCFA)

Low apart from counsel. The recurring costs are transport to the mairie, the préfecture and Dakar, printing and copying, meetings, translation and communications. The **short technical note** is often provided free by a university or organisation. The one substantial item is **legal fees for the annulment action**, which national organisations sometimes support. Keep transparent, collective accounts, and agree in advance how any compensation would be handled.

Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm**, a **campaign consultant**, a **digital-**

advocacy shop, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — where public campaigning is repressed or dangerous this market may be absent and a visible "show" perilous, so favour trusted journalists and international allies over hired campaigners, and never let paid help expose your people.

STEP 4: LEGAL CHALLENGES

Senegal's decisive remedy is an old and well-understood one: the **recours pour excès de pouvoir**, the action to annul an administrative act for illegality. Three tracks — the commune, the environmental process, and the Supreme Court.

TRACK 1: THE COMMUNE (the fastest route)

- **Obtain the délibération.** The act allocating or withdrawing domaine national land is a written decision of the **conseil municipal**, with a number, a date and minutes. Request it in writing at the mairie and keep proof.
- **Ask the council to reconsider.** A council that took a decision can withdraw or amend it. Address the session formally, put the **household use record** before it, and ask whether existing users were disclosed when the item was decided. This is the quickest available outcome and the most frequently neglected.
- **Attack the substance of the decision.** The standard grounds are: **incompetence** — the act taken by a body that had no power to take it; **procedural defect** — no proper deliberation, no minutes, no required approval; **failure to consider existing rights** — allocation over land already lawfully occupied and used; and **misuse of purpose** — a purported public-utility justification that is not real.
- **Désaffectation.** Where existing allocations were withdrawn, examine the basis and whether those affected were heard.
- **Registration for permanent improvements.** Where occupants have made **constructions, installations or improvements amounting to permanent development**, the right to seek **registration** is recognised — a distinct and under-used avenue worth legal advice.

TRACK 2: THE ENVIRONMENTAL PROCESS

- **Use the information rights.** The 2023 Code guarantees that **any person who requests it may obtain environmental information when available**, requires **publication of evaluation reports**, and obliges the State to **facilitate public participation**. Make written requests citing these obligations; a refusal or silence is itself material.
- **Insist on a real audience publique.** The hearing is part of the process, and where a project is **rejected following the hearing**, the **Comité technique** must rule on the merits of that rejection. So attendance, questions and what is recorded genuinely matter. Where the hearing is replaced in practice by a closed technical session, record that fact in writing at the time.
- **Submit to the Comité technique.** The committee **validates** evaluations and **monitors implementation of the environmental and social management plan**; submit your three-point note and the record of the hearing.
- **The certificate and its expiry.** Validation leads to a **certificat de conformité environnementale** issued by the Minister, valid **five years and renewable**. Diarise the expiry: renewal is a scheduled opportunity to put non-compliance and new evidence before the authorities.
- **No evaluation, no project.** Where evaluation was required and not carried out, or where an operation proceeds without the certificate, raise it with the Ministry and the Comité technique — the Code provides administrative sanctions.

TRACK 3: THE COUR SUPRÊME (the decisive route)

- **The recours pour excès de pouvoir.** The action to **annul an administrative act** for illegality — available against a **délibération** on domaine national land, against a **ministerial arrêté**, and against other administrative decisions.
- **It works on these facts.** The Supreme Court has entertained a challenge to a **municipal council's allocation of domaine national land to a company**, and has held that **subdivisions on domaine national land fall within the powers of the municipal council**, annulling the intervention of a minister who lacked competence. **Incompetence is a live and effective ground here.**
- **The deadline.** The Court has held that **knowledge acquired**, like service or notification, **starts the period running**, and that for an individual act the period runs from notification. **Assume your clock started when the community learned of the act**, and instruct counsel immediately.
- **What to plead.** Incompetence; procedural irregularity; failure to consider existing lawful users; and, where relevant, a

public-utility characterisation that does not correspond to the facts.

The three legal challenge types

TYPE 1: THE COMMUNE (the fastest route)

Obtain the délibération, ask the council to reconsider, and attack incompetence, procedure and disregard of existing users.

TYPE 2: THE ENVIRONMENTAL PROCESS

Information rights in writing, a genuine audience publique, submissions to the Comité technique, and the five-year certificate expiry.

TYPE 3: THE COUR SUPRÊME (the decisive route)

The recours pour excès de pouvoir to annul the délibération or the ministerial act — filed within the period, which may run from knowledge acquired.

Legal Strategy Decision Tree

1. **Is there a délibération?** → Obtain it this week, with the minutes, and record when you learned of it.
2. **Did the council know families were farming there?** → If the minutes are silent, that is a ground.
3. **Was the act taken by the right body?** → Incompetence has succeeded in the Supreme Court on precisely these questions.
4. **Has an evaluation and a hearing taken place?** → Use the information rights in writing; record any failure.
5. **Is the deadline running?** → Assume it is, and instruct counsel now.

Litigation Success Factors

The **délibération and the minutes** in hand; a fixed and documented **date of knowledge**; a **household use record** showing lawful occupation the council did not consider; a **short, signed technical note** rather than a long submission; counsel instructed early; and, where applicable, evidence of **permanent improvements** supporting a registration claim.

What to Avoid

Assuming that because nobody bought the land, nothing legally happened; failing to obtain the délibération; letting the annulment period lapse while gathering more evidence; attempting a comprehensive rebuttal of a thousand-page study; and neglecting the council itself, which can undo its own act faster than any court.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Senegal.

A délibération taken by a body without competence → annulment (a proven ground). Feed it with: the act, the minutes, and the legal basis relied on.

Allocation over land in lawful occupation, with existing users never mentioned → failure to consider; annulment. Feed it with: the household use record and the silence of the minutes.

Désaffectation without proper basis or hearing → procedural illegality. Feed it with: the act, and evidence that those affected were not heard.

Permanent improvements by long-standing occupants → a distinct registration claim. Feed it with: wells, buildings, orchards, fencing, with dates.

Evaluation report not published, or information refused → breach of the Code's information duties. Feed it with: your written requests citing the obligations, and the refusal or silence.

No audience publique, or a hearing at which the public could not put questions → defective participation. Feed it with: the notice, the venue, attendance, and your contemporaneous written record.

Water, cumulative effects, or the number of affected households misstated → the three-point technical case.

Feed it with: the signed note, page-referenced.

A certificate approaching its five-year expiry → renewal is a fresh decision. Feed it with: the compliance record and any new evidence.

The pattern: **lead with the council's act and its legality**, use the information rights to obtain what you need, and keep the technical case short.

STEP 5: MEDIA STRATEGY

Media matters in Senegal because a **délibération** is a public act taken by named local politicians, and because the country has an engaged press and vocal environmental organisations who have already made the readability of impact studies and the closure of public hearings a national argument.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the **délibération**, the **minutes that never mention the families farming there**, a named market gardener whose plot is inside the perimeter, dated photographs, and the unanswered request for the evaluation report. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in Senegal: **land allocated over people who have farmed it for generations, water and dust affecting health**, and **an impact study the public cannot obtain or read** — the last being a live national debate that campaigners have already opened.

Know the Outlets That Cover This Beat

Map the national press and its environment and land correspondents, online outlets covering territorial disputes, and **community and regional radio**, which reaches the affected communes directly in local languages. Where an international financier is involved, the foreign business press follows lender standards.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a visit to the fields and access to households, and be scrupulously accurate — one unsupported claim dismisses everything else.

Why media matters even when it doesn't make the front page

Coverage reaches the councillors who took the decision and face voters, the organisation that will supply the technical note, the lawyer who will file the annulment, and the officials deciding on publication. It also creates a dated record of when the community learned of the act — which matters for the deadline.

Sample Media Timeline

Launch with the **délibération** and the silent minutes; refresh at each milestone — the council session, the information request and its answer, the audience publique, the Comité technique, the annulment filing, and the five-year renewal.

Media Measurement

Track coverage, but measure what matters: whether the council reconsiders, whether the evaluation report is released, whether the hearing is held properly, whether the Comité technique responds, and whether works have started.

Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and where public visibility is dangerous, favour trusted journalists and international allies over paid amplification.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated and sourced. File them at the mairie, the préfecture or the Ministry against a **décharge** (stamped receipt), or send by registered post — proof of filing matters, and the date you learned of an act can decide your case. Have counsel review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [Commune, Département]: land farmed for generations allocated by council deliberation — minutes make no mention of the families

Bonjour [name],

By **délibération n° [number] of [date]**, the conseil municipal de [commune] allocated [area] at [location] to [company]. We attach the deliberation and the minutes of that session — **which do not mention that [number] families cultivate that land**, some for [decades].

We attach our household record identifying each family, their plots, their fruit trees and their wells, and dated photographs.

We requested the environmental evaluation report from the Ministry on [date], invoking the Environment Code's obligation to provide environmental information on request and to publish evaluation reports. [We have had no reply.] Copy attached.

I can take you to the fields and connect you with affected families. Could we speak this week?

[Name] · [Collectif / association] · [phone] · [email]

8B. Letter to the conseil municipal

Objet : Délibération n° [numéro] du [date] — demande de réexamen et communication des pièces

À Monsieur/Madame le Maire et à Mesdames et Messieurs les Conseillers municipaux de [commune] :

Nous, habitants de [village(s)], exploitants des terres sises à [lieu], portons à votre connaissance ce qui suit :

1. **Occupation.** [Nombre] familles cultivent ces terres depuis [période], y ont planté [nombre] arbres fruitiers et y ont réalisé [puits, clôtures, bâtiments]. Le registre nominatif est joint.
2. **La délibération.** Nous avons eu connaissance, le **[date]**, de la délibération n° [numéro] du [date] affectant [superficie] à [société]. Le procès-verbal de la séance **ne fait aucune mention des exploitants en place.**
3. **Demandes.** Nous sollicitons : (i) **copie intégrale** de la délibération et du procès-verbal ; (ii) l'inscription de la question à l'ordre du jour de la prochaine session et notre **audition** ; et (iii) le **retrait ou la modification** de la délibération afin de préserver les droits d'usage existants.

À défaut, nous nous réservons le droit d'exercer les voies de recours, notamment le recours pour excès de pouvoir.

[Signatures des représentants, village, date — conserver la décharge]

8C. Request for environmental information

Objet : Demande de communication d'informations environnementales — projet [nom]

À Monsieur le Ministre chargé de l'Environnement, et au Comité technique de Validation et de Suivi des Évaluations environnementales :

Sur le fondement du Code de l'Environnement, qui garantit à toute personne qui en fait la demande l'accès à l'information relative à l'environnement lorsqu'elle est disponible, qui prévoit la **publication des rapports d'évaluation environnementale**, et qui met à la charge de l'État le devoir de faciliter la participation du public au processus décisionnel, nous sollicitons : 1. le **rapport d'évaluation environnementale** relatif au projet [nom] à [lieu] ; 2. le **procès-verbal de l'audience publique**, s'il en a été tenu une, avec la liste des présences ; 3. le **certificat (ou attestation) de conformité environnementale** délivré, avec sa date et sa durée de validité ; 4. le **plan de gestion environnementale et sociale** et les rapports de suivi de sa mise en œuvre.

Nous sommes exploitants des terres concernées et avons un intérêt direct. Nous vous prions de nous indiquer, le cas échéant, les motifs de tout refus.

[Noms, village, date]

8D. Request that the audience publique be held properly

Objet : Audience publique relative au projet [nom] — conditions de tenue

À Monsieur le Ministre chargé de l'Environnement, copie au Préfet de [département] et au Maire de [commune] :

Nous sollicitons que l'audience publique relative au projet [nom] se tienne dans les conditions suivantes : 1. **dans la commune concernée**, et non au chef-lieu de région ; 2. avec **annonce préalable suffisante** portée à la connaissance des villages affectés ; 3. avec **présentation en [wolof / langue locale]** en plus du français ; 4. avec **temps effectif pour poser des questions** et obtenir des réponses, et non une simple présentation ; 5. avec **procès-verbal** consignait les questions posées et les réponses apportées, dont copie nous sera remise.

Nous rappelons que le rapport d'évaluation comporte [nombre] pages et n'a pas été mis à notre disposition dans un délai permettant son examen.

[Représentants, village, date]

8E. Written observations at the audience publique

Objet : Observations des populations de [village(s)] — audience publique du [date], projet [nom]

1. **Terres et exploitants.** [Nombre] familles exploitent [superficie] à [lieu] ; le registre nominatif est joint. Le rapport d'évaluation retient [nombre] ménages affectés — chiffre inexact.
2. **Eau.** Le projet affecte [puits / forage / cours d'eau] dont dépendent [nombre] familles ; le bilan hydrique du rapport est insuffisant (p. [x]).
3. **Effets cumulés.** [Nombre] installations existent déjà dans la zone ; leurs effets cumulés ne sont pas évalués.
4. **Procédure.** [Le rapport n'a pas été mis à disposition / la présente audience ne permet pas de poser des questions.]

Nous demandons le **rejet** de l'évaluation environnementale, ou à défaut des conditions vérifiables, et que les présentes observations soient consignées au procès-verbal.

[Noms, cartes d'identité, village, date]

8F. Submission to the Comité technique

Objet : Observations à l'attention du Comité technique de Validation et de Suivi des Évaluations environnementales — projet [nom]

Mesdames et Messieurs les membres du Comité,

Les populations de [village(s)] soumettent au Comité les éléments suivants, sur trois points précis : 1. **Ménages affectés.** Le rapport retient [nombre] ; notre registre nominatif en identifie [nombre]. Registre joint. 2. **Ressource en eau.** [Note technique signée par [expert / université], jointe.] 3. **Effets cumulés.** [Installations existantes et absence d'évaluation conjointe.]

[Le cas échéant : l'audience publique du [date] n'a pas permis au public de poser des questions, comme en atteste notre constat écrit du [date].]

Nous demandons que la validation soit **refusée** ou assortie de conditions vérifiables, et que le suivi du plan de gestion environnementale et sociale intègre ces points.

[Représentants, date, pièces jointes]

8G. Press release (effective)

COMMUNIQUÉ — [date]

Les populations de [village(s)] contestent la délibération n° [numéro] affectant leurs terres

Les habitants de [village(s)], commune de [commune], contestent la délibération n° [numéro] du [date] par laquelle le conseil municipal a affecté [superficie] à [société]. **Le procès-verbal de la séance ne mentionne pas les [nombre] familles qui exploitent ces terres**, certaines depuis [période].

« [Citation brève d'un exploitant] », déclare [nom]. Les populations ont saisi le conseil municipal le [date] pour demander le réexamen de la délibération, et le Ministère chargé de l'Environnement le [date] pour obtenir le rapport d'évaluation environnementale, dont la communication est prévue par le Code de l'Environnement.

Contact : [nom, téléphone]. Registre des exploitants, délibération, procès-verbal et photographies disponibles.

8H. Instruction to counsel (recours pour excès de pouvoir)

Objet : Recours pour excès de pouvoir — délibération n° [numéro] du [date], commune de [commune]

Maître,

Nous vous consultons en vue d'un **recours pour excès de pouvoir** devant la Cour suprême contre la délibération n° [numéro] du [date] du conseil municipal de [commune] affectant [superficie] à [société] [et/ou contre l'arrêté n° [numéro] du [date]].

Date de connaissance. Les populations ont eu connaissance de l'acte le **[date]**, dans les circonstances suivantes : [décrire]. Nous vous prions d'apprécier en priorité le **délai de recours**, la jurisprudence retenant que la connaissance acquise fait courir ce délai.

Moyens envisagés : (i) **incompétence** [le cas échéant, acte pris par une autorité autre que le conseil municipal] ; (ii) **vice de procédure** [absence de délibération régulière, de procès-verbal, ou d'approbation] ; (iii) **méconnaissance des droits d'usage existants** — [nombre] familles exploitent les terres, ce que le procès-verbal ne mentionne pas ; (iv) [le cas échéant] **détournement de procédure** quant à la déclaration d'utilité publique.

Pièces disponibles : délibération et procès-verbal ; registre nominatif des exploitants avec superficies, arbres plantés et mises en valeur ; photographies datées ; nos courriers au maire et au ministère avec décharges ; note technique de [expert].

[Date, signature des représentants]

Important Caveat

Templates are starting points. Adapt every one to your real facts and attach your record. Three things to remember: the **délibération** is the act that moved the land, so obtain it first; the **annulment period may run from the day you learned of the act**, so instruct counsel immediately rather than waiting for formal notification; and against a study of hundreds or thousands of pages, **three well-evidenced points** carry further than a long submission. Keep the **décharge** for everything you file.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Senegal rewards speed and precision, because the act you need is a single document and the clock may already be running. In rough order of impact for the effort:

1. **Go to the mairie and obtain the délibération and the minutes.** This is the act that allocated or withdrew the land. Nothing else in the campaign matters as much, and it costs a bus fare.
2. **Record the date you learned of it, in writing.** The Supreme Court treats **knowledge acquired** as starting the period for an annulment action — so fix the date and tell a lawyer immediately.
3. **Start the household use record.** Who farms which plot, since when, what trees they planted, what **permanent improvements** exist. This is what shows the council decided in ignorance of existing users — and improvements may support a registration claim.
4. **Write to the council asking it to reconsider** (Section 8B). A council can withdraw its own act; this is the fastest

possible outcome and the one most often overlooked.

5. **Request the environmental information in writing** (Section 8C), citing the Code's guarantee of information on request and the duty to **publish evaluation reports**. Keep proof; silence is itself useful.
6. **Turn out at the audience publique** and get your observations into the record (Section 8E) — where a project is rejected at the hearing, the Comité technique must rule on that rejection.
7. **Instruct counsel** for a **recours pour excès de pouvoir** (Section 8H) before the period lapses.

If you do only the first three, you have the act, the deadline and the evidence that the decision ignored you. That is the whole foundation of a Senegalese case.

WHEN THE SYSTEM IS TILTED

Senegal's tilt is the gap between a well-drafted framework and how it operates in practice — a gap that Senegalese campaigners themselves have documented publicly.

What This Tilt DOES (and DOESN'T DO)

The tilt means impact studies run to **five hundred to eight thousand pages**, which communities cannot realistically obtain or read; consultations have been criticised as having become **closed technical committees where the public can no longer ask questions** rather than genuine public hearings; several environmental statutes remain unapplied for want of implementing decrees; communes are under heavy pressure to attract investment; and environmental law struggles to bite in the industrial belt around Dakar. It does **not** close the doors: land moves by a **public délibération of an elected council**, which that council can **withdraw** and a court can **annul**; the Supreme Court has annulled land decisions on **incompetence** and has entertained challenges to council allocations to companies; the 2023 Code guarantees **information on request**, requires **publication of evaluation reports**, and imposes a duty to **facilitate public participation**; a **rejection at the audience publique** must be assessed on its merits by the **Comité technique**; and the **certificate lasts only five years**.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Délibération obtainable and defective, users in occupation, deadline still open.** The strongest position: a written act, a documented failure to consider existing users, and a court that annuls such acts.
- **Mixed.** The act is regular on its face but the evaluation is thin or the hearing was closed. Weight shifts to the information rights, the three-point technical note, the Comité technique, and the five-year renewal.
- **Entrenched.** A national-priority project with the certificate issued and works advanced. Assume the project proceeds; concentrate on **compensation, relocation, conditions and monitoring**, and on the **renewal** as the next real decision point.

Documented Senegalese Dynamics

The record shows a framework whose strength is administrative law. **Land is public, and so is the decision** — the **domaine national** covers all unregistered land, historically **more than ninety per cent of the territory**, held by the State on behalf of the nation, with **affectation and désaffectation** in the zones de terroirs decided by the **elected council**, which also deliberates on **customary use rights** and on land occupation plans. **Those decisions are annulled when unlawful** — the **Cour suprême** has entertained a challenge to a council's allocation of domaine national land to a company, and has held that **subdivisions on domaine national land fall within the council's competence**, striking down a minister's intervention; it has also held that **knowledge acquired starts the period for an annulment action**. **Occupants who improve land have a route to registration** — the law recognises the right to seek registration for **constructions, installations or improvements amounting to permanent development**. **The 2023 Code strengthened information and participation** — access on request, publication of evaluation reports, a duty to facilitate participation, an **audience publique** whose rejection the Comité technique must assess, a **five-year renewable certificate**, and monitoring of the environmental and social management plan. **But campaigners report the practice falling short** — unobtainable and unreadable studies, hearings that have become closed technical committees, and laws awaiting decrees. The through-line: **the decision is a document; get it, and challenge it**.

Assessment Framework — Determine Your Situation

Ask: does a **délibération** exist, and can we obtain it? **When did we learn of it** — is the period running? Were **existing**

users mentioned in the minutes? Has an **evaluation** been done and a **hearing** held, and could the public actually participate? Has a **certificate** issued, and when does it expire? Can we reach counsel and a national organisation this month? The answers tell you whether to fight in the council chamber, before the Comité technique, or in the Supreme Court — usually all three.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Senegal has a strong tradition of public meeting, memoranda, press engagement and peaceful demonstration, and civil society is active and vocal on environmental questions. Assembly is subject to notification and authorisation requirements, and gatherings have at times been restricted, so take advice, keep everything peaceful and orderly, and avoid confrontation at works sites, which can shift attention from a strong administrative case to a public-order dispute. The strategic point is particular to this country: your opponent's authority rests on **a written decision**, and written decisions are undone in council chambers and courtrooms rather than at gates.

Honest Assessment

Tilted fights are harder, and Senegal's difficulty is that rights on paper meet studies nobody can read and hearings that have narrowed. But "harder" is not "hopeless": land here moves by public act, that act can be withdrawn by the body that made it or annulled by the Supreme Court, the Code obliges publication and participation, and the certificate expires in five years. Concentrate force where the tilt is weakest — **the délibération, the deadline, and the information rights** — keep the technical case to three points, and instruct counsel early.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with, or the product of an administration under pressure. But capture is real. Read your situation actor by actor, and publish documents rather than accusations.

The council session. The characteristic failure: an item taken quickly, with minutes that do not record that families are farming the land. Signs: a délibération whose text describes the land as unoccupied; no site visit; councillors who say afterwards they were not told. Lever: the minutes themselves and your household register, placed before the next session in writing.

Competence. Watch carefully whether the act was taken by the body legally empowered to take it. The Supreme Court has annulled land decisions precisely because a minister acted where the **municipal council** was competent. Lever: the legal basis cited in the act, tested against the statute and the local-government code.

The public-utility label. A declaration of public utility changes the land procedure. Where it is asserted for what is in substance a private commercial project, that is arguable. Lever: the text of the declaration and the project's actual nature.

The study's length. An eight-thousand-page report is not merely inconvenient; where it is not published or supplied on request, it defeats the Code's information guarantee in practice. Lever: written requests citing the publication duty, and the record of refusal or silence.

The hearing. Where a public hearing is replaced by a closed technical session at which the public cannot ask questions, record it in writing on the day — Senegalese campaigners have made exactly this criticism publicly, and a contemporaneous note is what turns a complaint into evidence.

How to act on it, safely. Document from the mairie, the préfecture and the Ministry before you speak. Route genuine concerns to the **tutelle** exercised by the préfet, the **Cour des comptes** and inspection bodies for public funds, and the **Médiateur** for administrative conduct — and above all into your **letter to the council and your annulment application**, where they are protected and consequential. Do not publish unproven accusations about named councillors: the minutes and the register are stronger, safer evidence, and they are already public documents.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Senegal the timeline is set on the first day, because the period

for annulling an administrative act may run from the moment the community learns of it — so the campaign begins with a document and a date.

Realistic 12-Month Campaign Timeline

Weeks 1-3 (The act and the clock). - Go to the **mairie** and obtain the **délibération** and the **minutes** of the session. - **Record in writing the date the community learned of the act**, and how. - Begin the **household use record**: plots, years, trees, wells and other **permanent improvements**. - Contact a national environmental-justice or land organisation **and a lawyer** — the deadline cannot wait.

Weeks 3-10 (Council and information). - Write to the **conseil municipal** requesting reconsideration and the pièces, and ask to be heard at the next session (Section 8B). - Send the **environmental information request** to the Ministry and the Comité technique (Section 8C). - Where an **audience publique** is expected, write setting out the conditions for it to be meaningful (Section 8D). - Launch media on the délibération and the silent minutes.

Months 3-6 (Hearing and technical case). - Attend the **audience publique** in numbers, file **written observations**, and record how the hearing was actually conducted (Section 8E). - Commission the **short signed technical note** on three points — households, water, cumulative effects. - Submit to the **Comité technique** (Section 8F). - Broaden the coalition across affected villages and neighbouring communes.

Months 4-9 (Litigation). - Instruct counsel to file the **recours pour excès de pouvoir** against the délibération and any ministerial act, within the period (Section 8H). - Continue pressing the council — it can still withdraw its own act while the case runs.

Months 9-12 (Consolidation). - Where the project proceeds, obtain the **environmental and social management plan** and monitor implementation, which the Comité technique is required to follow. - Diarise the **five-year expiry** of the certificate as a scheduled decision point. - Where occupants have made **permanent improvements**, take advice on a **registration** claim.

Beyond 12 months. - Annulment proceedings run long; keep the register, the coalition and the archive intact. - Watch for **new délibérations** — a decision annulled can be retaken, and a fresh act restarts both the risk and the remedy.

Warning Signs — Act Early

Surveyors or beacons in the fields; a council session agenda mentioning **affectation** or **désaffectation**; talk of land being "given" to a company; a public-utility declaration; an announcement that an evaluation has been approved; fencing or clearing. Each is a trigger to **go to the mairie that week** — because the document you need is there, and your deadline may already be running.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: obtain the **délibération and minutes** first; fix and record the **date of knowledge**; build the **household use record**; ask the **council** to reconsider; use the Code's **information rights in writing**; keep the technical case to **three points**; instruct counsel **early**; and diarise the **five-year renewal**. Losing campaigns: assume nothing legal has happened because no land was sold; wait for formal notification; attempt to rebut a thousand-page study; ignore the council; and discover the annulment period after it has closed.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Senegal takes several forms, and it is worth naming them so you recognise a win when you get one: - the **délibération withdrawn or amended** by the council itself — the fastest and cheapest outcome; - the **délibération or a ministerial act annulled** by the Supreme Court for incompetence, procedural defect, or disregard of existing users; - a **désaffectation reversed**, or existing users' rights preserved in a revised allocation; - **evaluation reports published** and information supplied, where they had been withheld; - an **audience publique** genuinely held, with observations recorded — and, where a project is rejected there, the Comité technique obliged to rule on that rejection; - a **certificate refused, conditioned, or not renewed** at its five-year expiry; - **registration secured** by occupants who made permanent improvements; - **compensation and relocation improved**, and the project reduced or moved.

Senegalese communities and their lawyers have pursued and obtained these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone, but note that the first decision cannot wait: if a **délibération** exists, the **period for annulment may already be running**, and instructing counsel is urgent regardless of what else you decide. If the council can be persuaded to reconsider, that is faster and cheaper than any litigation and should be pursued in parallel. If the act is regular and the project of national priority, be realistic: the achievable outcomes are **conditions, compensation, relocation and the five-year renewal**. And if the study is unobtainable or the hearing has become a closed session, do not treat that as the end — **record it in writing at the time**, because it is precisely the kind of failure the Code's own obligations make arguable.

The Bottom Line

Senegal's framework is strong on paper and contested in practice: campaigners report impact studies of **five hundred to eight thousand pages** that citizens cannot obtain or read, hearings criticised as having become **closed technical committees**, and statutes awaiting implementing decrees. But the country's land system puts the decisive act unusually within reach. Under the **Loi sur le Domaine national**, all unregistered land — historically **more than ninety per cent of the territory** — is held by the **State on behalf of the nation**, and in the **zones de terroirs** it is the **elected municipal council** that **allocates and withdraws** it and deliberates on **customary use rights**; occupants who make **permanent improvements** may seek **registration**. That means dispossession happens by a **written, dated, public act** which the council can withdraw and which the **Cour suprême** can **annul** — as it has, holding that such land decisions belong to the **municipal council** and not to a minister, and confirming that the period runs from **notification or knowledge acquired**. Alongside it, the **2023 Environment Code** guarantees **environmental information on request**, requires the **publication of evaluation reports** and a **duty to facilitate public participation**, provides that a **rejection at the audience publique** must be assessed by the **Comité technique**, issues a **certificat valid five years and renewable**, and requires monitoring of the **environmental and social management plan**. Communities that obtain the **délibération** in week one, fix the date they learned of it, record who farms what, ask the council to think again, exercise the information rights in writing, keep their technical case to three points, and instruct counsel before the deadline have had allocations withdrawn, acts annulled, reports released and terms improved. No single step wins; the combination does. Start today by going to the **mairie** and asking for one document — and by writing down the date you first heard.